

Tentative Rulings for September 15, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2511189	MALONE VS TEMECULA VALLEY HOSPITAL, INC.	MOTION TO COMPEL DEPOSITION OF TEMECULA VALLEY HOSPITAL, INC.'S PERSON MOST QUALIFIED RE DEPARTMENT OF PUBLIC HEALTH INVESTIGATION

Tentative Ruling:

The motion is denied because the preconditions for bringing a motion under Code of Civil Procedure section 2025.450, subdivision (a), were not met to compel the deponent's appearance at deposition.

Subdivision (a) of section 2025.450 provides in part: "If, after service of a deposition notice, a party to the action ... or a person designated by an organization that is a party ... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document ..., the party giving notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection for any document ... described in the deposition notice." (Code Civ. Proc., §2025.450(a), italics added.)

Plaintiffs provide no evidence showing a deposition actually took place for which the deponent failed to appear for examination, to proceed with, or to produce documents as requested in Plaintiffs' deposition notice to warrant an order compelling his or her attendance. (Code Civ. Proc., §2025.450(a).)

2.

CASE #	CASE NAME	HEARING NAME
CVME2511189	MALONE VS TEMECULA VALLEY HOSPITAL, INC.	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET THREE

Tentative Ruling:

The motion is denied.

Plaintiffs seek an order compelling Defendant Hospital to provide further responses to their Request for Production of Documents, Set Three ("RFP") Nos. 65, 66, 71-74, and 78.

The motion is as to RFP Nos. 65, 66, and 78 because the Hospital has properly objected. Although Plaintiffs, as the propounding party, have made a fact-specific showing of good cause in seeking the incident reports as requested under RFP Nos. 65, 66, and 78, and the burden of justifying the objections falls on the Hospital as the

responding party, the Hospital has carried this burden by showing that the requested information falls under the protection of attorney-client privilege. (Evid. Code, 954.)

The motion is denied as to RFP Nos. 71-74 as moot in light of the fact the Hospital belatedly supplemented its responses before the date of the hearing. There are procedural requirements which must be met by Plaintiffs before seeking an order compelling further responses, including a requirement for good faith meet and confer (Code Civ. Proc., §§ 2016.040, 2031.310), and a requirement for a separate statement (Cal. Rules of Court, rule 3.1345). If Plaintiffs are contending that the supplemental responses are still unsatisfactory, and that the objections are still without merit or too general, the above procedural requirements should be complied with.

However, because the motion was necessitated by the Hospital's failure to timely supplement its responses, **sanctions are imposed against the Hospital in the amount of \$975, to be payable within 15 days of the order.** "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ...the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(b).)

Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 15, 2026. Moving party is ordered to give notice.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405551	GONZALEZ VS FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

There is no dispute that Plaintiff is the prevailing party in this action and is entitled to reasonable attorney fees. The only question to be determined by this motion is the amount of the award.

The California Supreme Court has indicated that attorney fee awards "should be fully compensatory." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) Thus, in the absence of "circumstances rendering an award unjust, an attorney fee award should ordinarily include compensation for all of the hours reasonably spent, including those relating solely to the fee." (*Id.*) However, "[a] fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.)

Importantly, the matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should ordinarily be based upon detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours,

billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi v. Cnty. of Monterey* (2008) 167 Cal.App.4th 1379, 1394; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group*, 22 Cal.4th 1084, 1095.)

Work on this case was performed by four attorneys. The bulk of the attorney work was done by Eesha Dalia, an attorney who has been licensed in California for seven years and who billed between \$425 and \$440 an hour. Joshua Fennell, a partner, also provided substantial work, billing between \$510 and \$525 an hour. Two other attorneys, Wil Vollbrecht and Bobby Walker, were briefly involved in the case. And four paralegals participated in the case, billing at \$215 an hour each. The total amount of time spent on the case was 48.60 hours, for a total of \$20,563.50.

In the opposition, Ford contends that this request is excessive and claims that plaintiffs' attorneys have engaged in block billing, having vague and illogical entries, administrative and value billing, and that the hourly rates are unreasonable. In an exhibit to counsel's declaration, Ford identifies a variety of entries that it claims are either routine tasks (reviewing documents like the purchase contract, litigation questionnaire, complaint, repair orders, deposition notices, etc.), are supposedly illogical (conferring with co-counsel), or are administrative such as exchanging emails on trial dates, confirming the deposition with the client, and so on. The bulk of these tasks were billed in small increments, and however routine they are, they must be performed on every case. Nor is it illogical that, during a case that lasted over a year and a half and was not settled until a few weeks before trial, the partner and the associate on the firm met ten times to discuss case strategy. All of the challenged entries appear reasonable.

Neither the total number of hours nor the hourly rates appear unreasonable. The court regularly sees hourly rates equal to or higher than what these attorneys are claiming in cases similar to these. And for a case that came within a few weeks of trial, roughly 50 hours of work from start to finish, including attorney fees, is not unreasonable. This court more customarily sees paralegals billing at \$150 an hour than \$215 an hour, but since only 2.6 hours were billed by the paralegals total, this would suggest a reduction of \$169 from the total amount claimed.

The motion is granted, and the court awards \$22,494.50. Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 15, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506657	DIEJOMAOH VS VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION TO COMPEL FURTHER RESPONSES: PRODUCTION OF DOCUMENTS

Tentative Ruling:

The meet-and-confer requirement has been met.

RFP Nos. 30 and 31

RFP No. 30 seeks “All documents, in the form of a list or compilation, of other Customer Complaints in Your electronically stored information of database(s) that are substantially similar to complaints made by Plaintiff with respect to the subject vehicle in other 2022 Volkswagen Tiguan models.” This RFP also includes a definition for “substantially similar.”

RFP No. 31 seeks “All documents that refer to, reflect, or relate to any Field Report issued, or in the process of being issued, in response to complaints experienced by Plaintiff as described in Defendant’s warranty history/summary and within the line items of the repair orders created at Defendant’s authorized repair facility.”

Civil Code section 1794, subdivision (c), authorizes a civil penalty in lemon law cases “[i]f the buyer establishes that the failure to comply was willful.” A violation is willful if the manufacturer knew of its obligations but intentionally failed to fulfill them. (*Schreidel v. American Honda Motor Co.* (1995) 34 Cal.App.4th 1242, 1249-1250.) Thus, if Volkswagen was aware that its cars had issues and failed to rectify those issues or replace vehicles that had them, that information can help support application of the penalty in this case. Also, some cases have held that complaints of similar defects may be relevant in a Song-Beverly Act case. (See *Doppes v. Bentley Motors Inc.* (2009) 174 Cal.App.4th 967, 976-977, n. 2; *Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 154 (*Donlen*).) In *Donlen*, the defendant car company argued that the court erred when it denied Defendant’s motion in limine to preclude evidence of “other vehicles” and non-warranty repairs. The appellate court rejected the argument:

[The expert’s] ‘other vehicle’ testimony ... did not concern simply other vehicles. It was limited to the transmission model Ford installed in plaintiff’s truck and other vehicles. [The expert] described what Ford itself had done to notify dealers and technicians about problems with this transmission model. Thus, everything about which he testified that applied to other vehicles applied equally to plaintiff’s vehicle. Such evidence certainly was probative and not unduly prejudicial.

(*Id.* at 154.)

While the question in *Donlen* was one of admissibility at trial, the case does indicate that information concerning other vehicles is at least relevant. (See *also Jensen v. BMW of North America, LLC* (S.D. Cal. 2019) 328 F.R.D. 557, 562 [allowing discovery regarding similar defects in other vehicles].)

A party is entitled to anything that “either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence” (C.C.P., § 2017.010), and here that includes evidence of defects in similar cars. Ultimately, it will be for the court that oversees the trial in this matter to determine whether evidence pertaining to any area of inquiry is relevant and admissible. In resolving a discovery dispute, the court is in no position to make that determination and can only attempt to foresee whether it is possible that information in a particular subject area could be relevant or admissible at the time of trial. (*Maldonado v. Super. Ct.* (2002) 94 Cal.App.4th 1390, 1397.)

The requested information is all relevant to Plaintiff’s claims. Given Plaintiff has demonstrated good cause for seeking this information.

As to RFP Nos. 30 and 31, the court grants the motion. Defendant is ordered to produce within ten (10) days supplemental Code-compliant further responses, without objections, to Plaintiff’s Request for Production of Documents, Set One, Request Nos. 30 and 31.

RFP Nos. 1-29

Given the additional production of documents, the court continues the hearing to September 30, 2026 at 8:30 a.m. as to RFP Nos. 1-29 and orders the parties to meet and confer in person, by telephone, or via visual conferencing about the sufficiency of the new document production within five (5) days of this order to determine if the new production resolves the issues. Moving party is ordered to submit a declaration addressing the parties’ efforts to meet and confer and the issues, if any, that remain. Moving party is ordered to submit the declaration at least five (5) court days prior to the next hearing date. Failure to do so may result in an order to show cause re: sanctions not to exceed \$1,500. No further briefing is permitted.